

Court No. - 39

Case :- WRIT - C No. - 7492 of 2021

Petitioner :- Smt. Meena Pushp

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Indrakesh Kumar Sharma

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

As prayed by learned counsel for the petitioner, put up on **22.3.2021** as **fresh.**

Order Date :- 12.3.2021

Harshita

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Hon'ble Deepak Verma,J.

From a perusal of the record of the writ petition, it appears that an opportunity of hearing had been granted to the petitioner by providing provisional assessment notice through a letter dated 05.10.2019. Instead of appearing in the Office of the Executive Engineer/respondent no.3, the petitioner wrote a letter dated 30.10.2019 to the Energy Minister, Government of U.P., Lucknow.

It is contended by learned counsel for the petitioner that copy of the said letter had also been given in the Office of Executive Engineer/respondent no.3.

As per the notice dated 05.10.2019, the date 30.10.2019 was fixed for personal hearing of the petitioner.

As the petitioner did not appear before the respondent no.3, the prayer in the writ petition seeking for quashing of the impugned final assessment order dated 22.11.2018 passed by the respondent no.3, cannot be granted.

The writ petition is, accordingly, ***dismissed***.

It is open for the petitioner to avail the remedy available under the U.P. Electricity Supply Code, 2005 raising her grievances before the appropriate Authority.

Order Date :- 22.3.2021

P Kesari